

NON DISCLOSURE AGREEMENT

THIS AGREEMENT is made on the 25-May-2026

BETWEEN:

Akash Gupta whose residence/registered office is located at

**49/1B,C 702 ARGE Helios APTS,Hennur Main Road Kothanur Bengaluru Karnataka.
Pin Code : 560077**

(2) **ZENSUNG Software Private Limited** whose registered office is at 301 KALA Mandir, Chitrakar Ketkar Marg, Behind Dahanukar College, Vileparle (East), Mumbai 400057 (the "**Company**")

WHEREAS

Interested Parties and the Company wish to enter into a confidential relationship with respect to the disclosure of certain proprietary and confidential information and accordingly wish to disclose to and receive from each other, from time to time during the term of this Agreement, certain confidential and proprietary information regarding their respective current and future creative, technical and business affairs. In consideration of such disclosures, each of **Interested Parties** and the Company agrees that any such information disclosed to it shall be subject to the terms and conditions of this Agreement.

IT IS HEREBY AGREED

1. DEFINITIONS

For the purposes of this Agreement the following words and phrases shall have the following respective meanings.

- 1.1. "**Confidential Information**" means all information disclosed, directly or indirectly, through any means of communication or observation, by or on behalf of one party hereto (the "**Disclosing Party**") to or for the benefit of the other party hereto (the "**Receiving Party**"), that relates to or is derived from a party's or a member of its Group's business, strategic, marketing or creative affairs, or to any other matter that the Receiving Party is advised or has reason to know is the confidential or proprietary information of the Disclosing Party. Any material provided by either party to the other which is clearly designated 'Confidential' (or other similar legend) will be presumed to be confidential information; the absence of any such legend, however, will not preclude the same from being deemed confidential.
- 1.2. "**Group**" means in relation to a party, that party, each and any subsidiary undertakings and parent undertakings and any other subsidiary undertaking of such parent undertakings from time to time and "subsidiary undertaking"

and “parent undertaking” shall have the meanings given to them by the Companies Act.

2. PROTECTION OF CONFIDENTIAL INFORMATION

Each party agrees that, for a period of one (1) year after the date of receipt of any Confidential Information, it will:

- 2.1. hold all Confidential Information in strict confidence and protect such Confidential Information with the same degree of care normally used to protect its own similar Confidential Information, but with no less than reasonable care;
- 2.2. not use or permit the disclosure or use of any Confidential Information for any purpose other than for the Purpose;
- 2.3. not copy or reproduce all or any part of such Confidential Information in any medium except as may be strictly necessary to effect the Purpose;
- 2.4. restrict any access to any Confidential Information to such of its employees as need to know such information to effect the Purpose; and
- 2.5. save as permitted by clause 2.4 above and save as may be required by law or by a competent regulatory authority not disclose any Confidential Information to any third party (including consultants, representatives or advisers) without the prior written consent of the Disclosing Party and in the event that such a disclosure is permitted by the Disclosing Party the Receiving Party will procure that such third party is fully aware of and agrees to be bound by the terms of this Agreement.

3. EXCLUSIONS

The obligations and requirements set out in this Agreement will not apply to the use or disclosure of information which:

- 3.1. at or after the time of disclosure or acquisition is in the public domain otherwise than through a breach of this Agreement by the Receiving Party or its employees or agents; or
- 3.2. is or becomes known to the Receiving Party from a third party in rightful possession thereof and owing no obligation of confidentiality to the Disclosing Party; or
- 3.3. was already in the lawful possession of the Receiving Party (as shown by appropriate records), prior to the date of disclosure by the Disclosing Party under this Agreement; or

3.4. is required to be disclosed by any Court of competent jurisdiction and/or governmental or regulatory body or agency lawfully requesting the same; or

3.5. is approved for release by written authorisation from the Disclosing Party.

4. OWNERSHIP OF CONFIDENTIAL INFORMATION

All rights in and title to the Confidential Information supplied by one party to the other remain in the Disclosing Party. Neither this Agreement nor the furnishing of any Confidential Information will be construed as granting to the Receiving Party (either expressly, by implication or estoppel, or otherwise) any license or immunity under any copyright, patent, trade secret, trademark, or other intellectual property right now or hereafter owned or controlled by the Disclosing Party, except solely to effect the Purpose.

5. PUBLICITY RESTRICTIONS

Without the other party's prior written approval, neither party will (a) make or provide any public statement or disclosure concerning the existence of or any aspect of this Agreement or the discussions between the parties, including any mention of the Purpose; or (b) use the name, likeness or trademarks of the other party or its employees or affiliates to express or imply any relationship or affiliation between the parties, or any endorsement of any product or service.

6. WARRANTIES

Each Receiving Party acknowledges and agrees that the Disclosing Party makes no warranties, express or implied, with respect to any matter relating to the Confidential Information which is provided 'as is'.

7. TERMINATION

This Agreement may be terminated by either party immediately upon a breach by the Receiving Party of a material provision of this Agreement. Unless earlier terminated, this Agreement will continue in full force and effect for a period of one (1) years from the date hereof. No expiration or termination of this Agreement will affect provisions of this Agreement which are intended, by their terms or by necessary implication, to survive such expiration or termination or to relieve the Receiving Party of its obligations with respect to Confidential Information received prior to such expiration or termination.

8. RETURN OF CONFIDENTIAL INFORMATION

Upon termination or expiration of this Agreement, each Receiving Party will, upon the Disclosing Party's request, (a) promptly return any and all materials containing

Confidential Information to the Disclosing Party; or (b) destroy such materials and certify their destruction in writing to the Disclosing Party.

9. **NOTICES**

Notices required to be given by one party to the other in connection with this Agreement will be given in writing and delivered via first class, postage paid, return receipt mail to the other party's address set forth in the introductory paragraph of this Agreement

10. **ASSIGNMENT**

This Agreement and all rights, duties and obligations hereunder are personal to the undersigned parties and may not be assigned, delegated or otherwise transferred by either party, or by operation of law, without the prior written consent of the other party; provided, however, that either party may assign this Agreement in its entirety to any affiliated company that acquires or succeeds to substantially all of its shares, assets or business. Any other attempt by either party to assign or transfer this Agreement or any right or obligation herein is void and without effect and will constitute a material breach of this Agreement. This Agreement and each and every provision hereof will be binding upon and will inure to the benefit of the parties and their permitted successors and assigns.

11. **REMEDIES**

In the event that the terms of this Agreement are breached the Receiving Party acknowledges that damages may not be an adequate remedy and that the Disclosing Party will be entitled to seek the remedy of an injunction and/or specific performance and other equitable relief.

12. **WAIVER**

12.1. A failure or delay by either party in exercising any right, power or privilege under this Agreement will not operate as a waiver of it. No single or partial exercise of a right or remedy provided by this agreement or by law will prevent either party from further exercising a right or remedy or the exercise of another right or remedy.

12.2. A variation of this Agreement shall not be effective unless in writing signed by an appropriate signatory on behalf of both parties.

13. **CONTRACTS (RIGHTS OF THIRD PARTIES) ACT**

Except as otherwise provided, a person who is not a party to this Agreement has no right to enforce any of its terms under the Contracts (Rights of Third Parties) Act.

14. **GOVERNING LAW**



This Agreement shall be governed by the laws of **India** and Court shall have exclusive jurisdiction.

SIGNED for and on behalf of **Interested Parties:**

Akash Gupta

Signature: _____

Name: Akash Gupta

Date 25-May-2026

SIGNED for and on behalf of **ZENSUNG Software Private Limited**

Signature: _____

Name: Mr. Shreenandan Gharpure

Position: Head - HR Admin